

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

December 22, 2008

Due to the Christmas holiday season, the regular meeting of the Governing Body of the City of Cheyenne was re-scheduled to begin at 3:00 p.m. in Council Chambers. Present were: MAYOR - Jack R. Spiker; COUNCIL MEMBERS - Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Mr. Segrave and Mr. Valdez. Absent: Dr. Rinne. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Bob Nicholas, Acting City Attorney.

A PRESENTATION TO MAYOR JACK R. SPIKER FROM THE GEOGRAPHIC INFORMATION SYSTEM EXECUTIVE COMMITTEE. Joyce Pukash, Cheyenne/Laramie County GIS Program, recognized Mayor Spiker for his support of the program and service as a member of the executive committee, presented him with a Certificate of Appreciation plaque and a historic map of the state of Wyoming.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Collins and Mr. Pierson, Mayor Spiker announced agenda item #21(a) would be removed from the Consent Agenda. Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Mr. Segrave, Mayor Spiker announced agenda items #16 and 23(c) would also be removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON DECEMBER 8, 2008. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON DECEMBER 15, 2008. Motion (per Consent Agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown moved to divide the question to allow a separate vote on a voucher payable to Ameri-Tech HVAC Services, seconded by Mr. Collins. Ms. Case requested a motion to separate out the item be made instead of a motion to divide the question with Mayor Spiker advising the motion, with the second, on the floor was to divide the question. Motion carried. Voting "yes" – all members of the governing body present with the exception of Ms. Case and Mr. Laybourn voting "no". Mr. Brown declared a conflict of interest (business interest) due to the voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Mr. Collins moved to approve the voucher payable to Ameri-Tech HVAC Services (\$345.90),

seconded by Mr. Segrave. Comment followed on the order of action involving an item divided, or separated, and the main motion pertaining to the remaining voucher items listed; parliamentary procedure, and governing body customary practices and procedures. Upon inquiry, Acting City Attorney Bob Nicholas advised either action (i.e. motion to divide or a motion to separate the item out) could occur with action at the discretion of the governing body. Motion to approve the Ameri-Tech HVAC Services voucher carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Mr. Laybourn voting “no”. Following announcement of the vote, Mr. Brown returned to Council Chambers. Main motion to approve the remaining voucher list items carried. Voting “yes” – all members of the governing body present.

Mayor Spiker opened a public hearing to receive comments and input on a restaurant liquor license application filed with the City Clerk’s Office for Yu Zheng d/b/a Golden House Restaurant, 1651 Carey Ave., Ste. 8, Cheyenne, WY. There being no comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing. The item was referred to Finance Committee.

“AN ORDINANCE CREATING SECTION 8.60.160(D), NOTIFICATION OF COSTS, OF CHAPTER 8.60, NUISANCES, OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” Reporting for Finance Committee, Mr. Segrave moved to approve on third and final reading, seconded by Mr. Brown. Upon inquiry, Police Chief Bob Fecht advised that language in the ordinance pertaining to abatement of grass/weeds and snow/ice is limited to those nuisances based upon discussion with attorney staff, and added that future amendments to the ordinance may be requested if needed. Motion carried. Voting “yes” – all members of the governing body present. (#3837)

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM HR-1 HIGH-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO P PUBLIC DISTRICT FOR BLOCK 40, BUFFALO RIDGE ESTATES, SIXTH FILING, AND PORTIONS OF THE ADJACENT ALLEYS, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO PINERIDGE AVENUE AND SOUTH OF SAGEBRUSH AVENUE).” Reporting for Public Services Committee, Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Ms. Case raised a point of order involving parliamentary procedure and stating of the question. Upon inquiry, Acting City Attorney Nicholas advised that due to the governing body’s custom and practice, the nature of the motion made was adequate. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE CREATING CHAPTER 17.107, OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE 2002, RESTRICTED USE CONTROL AREA OVERLAY (RUCAO) DISTRICT ON A PORTION OF SOUTH PARK ESTATES 2ND FILING AND INTERIOR HEIGHTS, STANFIELD ADDITION BLOCKS 694, 744, AND STANFIELD 3RD ADDITION, AND PORTIONS OF THE ORIGINAL CITY OF CHEYENNE, BLOCK NUMBER 713-714, 754-756, AND 775-777, CHEYENNE, WYOMING, ALSO TO BE KNOWN AS SOUTH PARK ESTATES, 6TH FILING (LOCATED NORTH OF I-80 BETWEEN PARTOYAN DRIVE AND WALTERSCHEID BOULEVARD).” Mike Basom,

attorney for the agent, explained the ordinance establishing the district, DEQ involvement and the final plat were all affiliated and that the Rucao district needs to be established prior to finalizing other areas. Carl Anderson, manager, DEQ Voluntary Remediation Program for contaminated sites, advised the former landfill can be used for other purposes and that DEQ is not opposed to certain redevelopment activities as long as it is done in a protective manner. He indicated that before finalizing and entering into a remedy agreement, the Rucao district must be in place. Discussion followed on proposed use of the area as soccer fields and possibly for storage and office space; City staff's request to DEQ to receive a letter confirming allowable property uses prior to establishment of the district, and letter (unsigned) staff had received from DEQ stating future intended usage was only for soccer fields. Mandy Bernard, Development office, advised the DEQ letter received had been distributed to governing body members, that conditional issues are still pending, and that staff is requesting postponement on the ordinance to receive further information that had been requested. Mr. Basom stated uses can not be controlled and restricted until the restrictive overlay district is in place. Mr. Anderson provided information on the property restricted use control agreement process between the parties involved and the voluntary remediation program, and stated unrestricted use would not be allowed, however, recreation and certain commercial/industrial uses may be allowed. Mr. Basom advised a previous City ordinance establishing another Rucao district had been used as a template for this proposed action. Mr. Collins stated there was no recommendation on the item from Public Services Committee. Mr. Collins moved to approve on second reading with staff recommendations #1 through 4, seconded by Mr. Pierson. It was noted that Development staff is seeking a letter from DEQ that will outline appropriate land use activities for the site. Ms. Bernard stated Development has also requested information from the developer/agent pertaining to maps depicting the former landfill and buildable areas, greenway connection, and land-use and traffic considerations, and explained staff is requesting time to receive and review the information. Mr. Collins moved to postpone to January 26, 2009. Motion died due to the lack of a second. It was noted the ordinance was being presented on second reading and, if approved and further time to receive information was needed, consideration of a postponement could be entertained on third reading. Ms. Case raised a point of order involving parliamentary procedure and stating of the question before the assembly with Mayor Spiker responding that he would follow the previous ruling by Acting City Attorney Nicholas concerning governing body discretion, and customary procedure, and called for a vote on the motion to approve the ordinance on second reading. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no".

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, SWAN RANCH SITUATED IN SECTIONS 11 AND 12, T. 13N., R. 67W., OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED ALONG CLEAR CREEK SOUTH OF AND INCLUDING I-80 RIGHT-OF-WAY AND EAST OF AND INCLUDING I-25 RIGHT-OF-WAY)." Gay Woodhouse, attorney representing several property owners in the area, spoke in opposition to the ordinance, commenting on the following topics: Estimated infrastructure costs involving potential future annexation to area properties; access points; assurance to residents in the area concerning traffic concerns; suggestion of consideration of a conservation easement or dedication; physical boundary of the area and state statute annexation criteria; potential future development types; health, safety and welfare concerns, and area property owners' investments in their land. Also expressing concerns with the proposed annexation were Brenda Rath, John Fafoutakis and Leo Garcia. Comments included the following topics: Potential future annexation infrastructure costs to adjacent property owners (informational handout submitted by

Ms. Rath on file with office of City Clerk); 201 Agreement and sewer and water services; real estate valuations in the area, and developer vs. area property owners' interests. Ms. Case raised a point of order questioning discussion from the audience being held without a motion on the floor with Mayor Spiker ruling that City ordinance provides for input from the public prior to a motion on the floor. Mr. Collins moved to approve on second reading, seconded by Mr. Segrave. Upon inquiry, Brad Emmons, AVI Engineering, agent for the applicant, provided information on the property and development planning time frame involving annexation, and advised at this time the property owner has not disclosed future development plans. Ms. Case raised a point of parliamentary clarification concerning discussion while no motion is pending with Mayor Spiker deferring to Acting City Attorney Nicholas for interpretation and response. Attorney Nicholas advised the practice adopted by the governing body, and by City code, with regard to how an issue is brought to the floor and presented for discussion before the governing body is not inconsistent with Robert's Rules of Order. Upon inquiry, Brandon Cammarata, Urban Planning office, provided information on developer infrastructure costs and reimbursement procedures affecting adjacent property owners upon future annexation/development actions pursuant to City ordinance, and effects of provisions contained in the 201 Agreement. Ms. Woodhouse commented on potential future infrastructure reimbursement costs to area property owners and affiliated notice of intent to collect reimbursement forms filed with the County as related to title company lien searches involving property ownership changes. Discussion followed on property development in the area, including the new proposed Speer interchange; unknown development plans for the property; vision of area development as presented by consultants involved in the Urban Planning office's Uniform Development Code project, and water and sewer services. Upon inquiry, Ms. Woodhouse confirmed a meeting with the developer's agent, Mr. Emmons, had been held but a meeting directly with the developer had not been requested. Discussion continued and included the following topics: Communication between property owners, the developer and City Urban Planning staff; possible legal recourse in opposition to the annexation by neighboring property owners; annexations of county properties involving wells and septic systems; traffic impacts; future financial concerns of nearby property owners; health, safety and welfare and protection of water supplies; emergency response services; city growth; county pockets, and voluntary annexation requests by property owners. Motion carried. Voting "yes" - all members of the governing body present with the exception of Ms. Case, Mr. Laybourn and Mr. Valdez voting "no."

[CA] "A RESOLUTION TO AMEND THE CITY OF CHEYENNE ANNUAL ACTION PLANS FOR FISCAL YEARS 2005-2006, 2007-2008 AND REALLOCATE FUNDING FOR TWO COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) PROJECTS." Motion (per Consent Agenda) carried (in the amount of \$34,781.44). (#5091)

"A RESOLUTION CALLING FOR A PROFESSIONAL TRAFFIC ANALYSIS OF THE TRAFFIC FLOW EFFECTS RESULTING FROM THE POSSIBLE CLOSURE OF W. 22ND STREET BETWEEN O'NEIL AND BENT AVENUES." Mr. Collins advised there was no recommendation on the item from Public Services Committee. Brief comment followed on the etiquette of introducing and making a motion to adopt the resolution. Mr. Laybourn read the Whereas clauses contained in the Resolution and moved to adopt, seconded by Ms. Case. It was noted there has been no application request to close the street received by the City. Ms. Case raised a point of order regarding the right of the maker of the motion to be allowed to speak first on the motion with Mayor Spiker requesting Acting Attorney Nicholas to provide his legal

opinion concerning the point of order that had been raised relative to past common and customary practices involving the mayor's recognition of speakers wishing to have the floor. Attorney Nicholas opined that the maker of the motion had the opportunity to speak to the motion when completion of the reading/making of the motion was done and the maker chose not to do so; recognition to have the floor was then passed to Mr. Collins. Mayor Spiker ruled he would accept the opinion expressed by Mr. Nicholas and returned the floor to Mr. Collins. Comment followed on the unknown costs to conduct the study and, if a request were received to close the street, traffic study costs would be the financial responsibility of the applicant. Mr. Collins moved to call for the question (to limit debate), seconded by Mr. Pierson. Upon comment involving discussion on the motion, Mayor Spiker advised the motion was not debatable and subsequently ruled Mr. Laybourn out of order. Motion carried. Voting "yes" – all members of the governing body present with the exception of Ms. Case and Mr. Laybourn voting "no". Main motion failed. Voting "yes"– Ms. Case and Mr. Laybourn. Voting "no" – Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Segrave, Mr. Valdez and Mayor Spiker.

"A RESOLUTION DESIGNATING LOCAL BANKS AS DEPOSITORIES FOR MUNICIPAL FUNDS." Mr. Segrave moved to adopt, seconded by Mr. Brown. Mr. Collins declared a conflict of interest due to personal and family member board involvement for two of the depositories. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Collins who did not vote. (#5092)

[CA] "A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE)" -- referred to Public Services Committee (due to postponement from Nov. 24, 2008).

[CA] "A RESOLUTION DESIGNATING THE SUNDAYS DURING 2009 THAT ANNUAL LIQUOR LICENSEES MAY EXTEND DISPENSING ROOM HOURS OF OPERATION FOR SALES UNTIL 2:00 A.M. THE FOLLOWING DAY" -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF BUFFALO RIDGE ESTATES, TENTH FILING, A RE-SUBDIVISION OF BLOCK 29, BUFFALO RIDGE ESTATES, FOURTH FILING, BLOCK 40, BUFFALO RIDGE ESTATES, SIXTH FILING, AND BLOCK 43, BUFFALO RIDGE ESTATES, NINTH FILING, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO PINERIDGE AVENUE AND SOUTH OF SAGEBRUSH AVENUE)" -- referred to Public Services Committee (sponsor - Mr. Collins).

LEASES/CONTRACTS/LEGAL:

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, to provide a bus for Stride clients to use for curb-to-curb public transportation. Motion (per Consent Agenda) carried (lease amount \$1.00/year). (#5324)

Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) industrial and economic development services. Mr. Segrave moved to approve, seconded by Mr. Brown. Upon inquiry, Randy Bruins, Chief Executive Officer, Cheyenne LEADS, provided a brief overview on past economic development activities and a general update on business recruitment efforts and potential types of future developments. Appreciation was expressed to Mr. Bruins and LEADS staff for their efforts in promoting the Cheyenne community. Motion carried. Voting "yes" – all members of the governing body present. (#5325)

[CA] Professional Services Agreement between the City of Cheyenne, and Ziebart Consulting, LLC, for comprehensive federal government affairs consulting services -- referred to Finance Committee.

[CA] A Transmission Easement License Agreement between the City of Cheyenne and Silver Sage Windpower LLC, a Delaware LLC, for transmission of electricity across a certain portion of the Happy Jack Landfill Property -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5076 between the City of Cheyenne and AVI Professional Corporation for additional design work and construction management services for the Henderson Basin Flood Control Improvement Project (2007-2010 1% Sales Tax). Mr. Segrave moved to approve in an amount not to exceed \$450,635.00, seconded by Mr. Valdez. Discussion followed and included the following topics: Project bid savings relative to estimated engineer's estimates, and services to be provided and costs (percentage) involved with the proposed contract modification. During discussion, Mayor Spiker ruled comments being made pertaining to AVI's work relationship with the City as out of order; not appropriate to the motion on the floor. During further comment involving contract criteria and past performance of AVI involving City projects, Mr. Brown raised a point of order with Mayor Spiker ruling that comments concerning previous performance could continue. Ms. Case raised a point of order regarding Mr. Brown's lack of reference as to the reason he raised the point of order with Mayor Spiker reviewing his previous ruling allowing discussion to continue. Mr. Brown moved to postpone for two weeks (to January 12, 2009) to allow for further research on costs involved in the proposed modification, seconded by Mr. Pierson. During discussion on the motion to postpone, Ms. Case raised a point of order noting language in Robert's Rule of Order talks about not speaking in the first person, and that Council members' names or individual names should not be used. Discussion followed on the purpose of postponement, which is to provide further review of percentage costs involved in the proposed modification relative to the engineer's estimate vs. the actual contract bid amount, and industry percentage standards. Motion to postpone for two weeks carried. Voting "yes" – all members of the governing body present.

[CA] Contract Modification No. 2 to Contract No. 5280 between the City of Cheyenne and Reiman Corporation to clarify warranty responsibilities on the Norris Viaduct Project (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 5280 between the City of Cheyenne and Reiman Corporation for additional work for the Norris Viaduct Project (2003-2006 1% Sales Tax; 1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #R-12-09 between the City of Cheyenne, Sanitation Dept., and American Scales, Inc. of Lakewood, CO, for furnishing and installing one new fully electronic above ground steel deck truck scale with software. Mr. Segrave moved to accept the bid in an amount not to exceed \$66,191.00, seconded by Mr. Brown. Upon inquiry, Dennis Pino, Solid Waste Director, provided information on the purpose of acquiring a new scale due to increased use and the need to weigh semi trucks prior to transporting waste to Colorado. Motion carried. Voting "yes" – all members of the governing body present.

APPLICATIONS:

[CA] A transfer of ownership for a retail liquor license application filed with the City Clerk's Office for JKLL, Inc., d/b/a Game On Sports Bar, 1617 Capitol Ave., Cheyenne, WY. (License currently held by Cheyenne Club, Inc., d/b/a The Cheyenne Club, 1617 Capitol Ave., Cheyenne, WY.) Motion (per Consent Agenda) carried.

[CA] A transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Bedrock Seafood, Inc., d/b/a River Mountain Seafood Restaurant, 112 W. 17th St., Cheyenne, WY. (License currently held by JKLL, Inc., d/b/a Game On Sports Bar, 112 W. 17th St., Cheyenne, WY.) Motion (per Consent Agenda) carried.

A transfer of location for a retail liquor license application filed with the City Clerk's Office for HEJE, Inc., [d/b/a to be determined], 4503 Western Way, Cheyenne, WY. (License currently located at 3839 E. Lincolnway, Cheyenne, WY.) John Rogers, attorney speaking on behalf of the applicant, advised the issue discussed at the Finance Committee meeting (i.e. disclosure of a violation by one of the applicant members on the application form) had been addressed. Mr. Segrave moved to approve, seconded by Mr. Valdez. Upon inquiry, Mr. Rogers explained a clerical error on the application resulted in an inadvertent non-disclosure of a criminal violation by one of the applicant members and that disclosure had been provided on previous liquor license applications. Brief comments followed concerning applicant responsibility pertaining to application forms. Motion carried. Voting "yes" – all members of the governing body present.

APPOINTMENTS:

[CA] Appointment of Tony Adams to the Personnel Commission, Mark Hardee to the Fire Civil Service Commission, Michael Lemke to the Housing and Community Development Advisory Council and Jody Malm and Beverly Bowman to the Board of Adjustment. Motion (per Consent Agenda) carried.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made that the Sine Die meeting of the Governing Body will be held at 6:00 p.m., and the First Regular Meeting of the Governing Body will be held at 6:30 p.m., on Monday, January 5, 2009 in the Civic Center, 510 W. 20th Street; a reception to follow in the Civic Center Lobby.

Announcement was made that upcoming City Council Committee meetings are rescheduled as follows: Finance Committee at 11:00 a.m. in Room 122; Vouchers at 12:00 p.m. in City Council Chambers; and Public Services Committee at 12:15 p.m. in Room 122, on Tuesday, January 6, 2009.

Announcement was made of a public hearing to be held January 12, 2009 at 6:00 p.m., in City Council Chambers, 2101 O'Neil Avenue, to discuss the sale of City-owned real property located at 700 West Fox Farm Road, Cheyenne, Wyoming to Attention Homes, Inc. which sale will benefit the economic development of the City of Cheyenne, pursuant to Wyo. Stat. § 15-1-112(b)(i)(D). The estimated appraised value of said property to be sold is \$184,000 and will be sold to Attention Homes, Inc. for \$2,000. This land will provide additional space to facilitate the expansion and redevelopment of Attention Homes, Inc.

OTHER CITY BUSINESS:

John Fafoutakis commented on aircraft in the area he had recently noticed and Homeland Security notification concerns.

Jan Nelson Schroll read a City Resolution, adopted in 2003, into the record which re-committed Cheyenne to it's historic preservation and requested City Council members work with citizens to encourage preservation of historic properties through incentives and other means; made comments in support of historic preservation, and expressed appreciation to Mr. Laybourn for his past four years of service to his Council Ward.

Jeanie Tucker commented on moving of houses from the historic Rainsford District and loss of history within the district.

Foy Jolly, spoke in support of the Henderson Basin Flood Control Project and community drainage projects generally, and expressed appreciation to Mayor Spiker and outgoing City Council members for their hard work as members of the governing body.

Due to a prior commitment, Mayor Spiker relinquished duties of the chair to Council President Pierson and vacated Council Chambers for the remainder of the meeting.

Mr. Laybourn made statements concerning governing body meeting procedures, including other City business, and commented on the Council's Code of Conduct, and discussion and participation restraints during his term in office.

Ms. Case commented on the purpose of Robert's Rule of Order with regard to parliamentary rights.

There being no further business to come before the governing body, the meeting was officially adjourned at 5:10 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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